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Case Number: 25TRCV02093 Hearing Date: September 17, 2026 Dept: P

Motion for Summary Judgment

Moving Party: Plaintiff City of Rancho Palos Verdes

Responding Party: Defendant Community Christian Church of Rancho Palos Verdes, Inc.

RULING

The court considered the moving papers, opposition, and reply. Plaintiff's Motion for Summary Judgment is GRANTED.

PROCEDURAL BACKGROUND

On June 25, 2025, Plaintiff City of Rancho Palos Verdes ("Plaintiff" or the "City") filed a complaint against Defendant Community Christian Church of Rancho Palos Verdes, Inc. ("Defendant") and DOES 1 through 10, inclusive, alleging two causes of action for: (1) Public Nuisance Per Se; and (2) Public Nuisance.

On December 8, 2025, Plaintiff filed a first amended complaint ("FAC") against Defendant and DOES 1 through 10, inclusive, alleging the same two causes of action.

On January 22, 2026, Defendant filed a Demurrer to Plaintiff's FAC. On March 4, 2026, the court overruled Defendant's Demurrer to Plaintiff's first cause of action and sustained the Demurrer to Plaintiff's second cause of action with leave to amend.

On April 13, 2026, Defendant and Cross-Complainant Community Christian Church of Rancho Palos Verdes, Inc. filed a cross-complaint against Cross-Defendant Darcy Malloy, alleging three causes of action for: (1) Nuisance; (2) Negligence; and (3) Declaratory Relief.

On June 23, 2026, Plaintiff filed the instant motion. On August 24, 2026, Defendant filed an opposition. On September 4, 2026, Plaintiff filed a reply.

FACTUAL BACKGROUND

Defendant has owned and been in possession of the real property located at 1903 W. Summerland Street in Rancho Palos Verdes, California (the "Property"). (UMF No. 2.) Defendant alleges in its cross-complaint that it leases a portion of the Property to a private on-site childcare facility. (UMF No. 12.) The Rancho Palos Verdes Municipal Code ("RPVMC") adopts the California Plumbing Code ("CPC") as the City's plumbing code. (UMF No. 3.) CPC Section 713.5, as adopted by RPVMC Section 15.12.010, provides that no permit shall be issued for the installation, alteration, or repair of a private sewage disposal system on a lot for which a connection to a public sewer is available within 200 feet of the building to be served. (UMF No. 4.) A public sewer connection is available within 200 feet of the Property. (UMF No. 5.) Surrounding properties are connected to Plaintiff's public sewer system. (UMF No. 6.)

The RPVMC adopts the California Building Code ("CBC") as the City's building and administrative code. (UMF No. 28.) CBC Section 104.4, as adopted by RPVMC Section 15.04.010, authorizes a building official to enter a structure or premises at all reasonable times to conduct inspections where the official has reasonable cause to believe that a condition exists in violation of the applicable code sections. (UMF No. 29.)

David Rasor ("Rasor") has been serving as the City's building official. (UMF No. 7.) Before September 23, 2024, the City received a telephone complaint from a nearby resident indicating that a private sewage disposal system had been installed on the Property, and Rasor searched the City's permit records and determined that no permits had been obtained for the installation of a private sewage disposal system at the Property. (UMF Nos. 8, 33.) On September 23, 2024, Rasor inspected the Property after entering the Property's parking area by truck through an open gate, driving along an internal access road towards the rear portion of the Property where the childcare facility office is located, and speaking to employees of the on-site childcare facility regarding a suspected private sewage disposal system. (UMF Nos. 34-36.) The childcare facility employees directed Rasor to the location of the private sewage disposal system which was immediately adjacent to one of the childcare facility buildings. (UMF Nos. 37, 39.) There, Rasor observed a private sewage disposal system in an outdoor area enclosed by temporary construction fencing. (UMF No. 41.) Rasor documented the private sewage disposal system through inspection and photographs. (UMF No. 42.) City staff determined that the private sewage disposal system had been installed without the permits required by the RPVMC. (UMF No. 10.)

On September 23, 2024, the City issued a Stop-Work Notice which ordered Defendant to cease all work on the Property and required an immediate site inspection no later than September 28, 2024. (UMF No. 11.) The City's Stop-Work Notice was signed by an employee of the one-site childcare facility. (UMF No. 13.) On October 1, 2024, City Code Enforcement staff searched the City's permit records but did not identify any permit on file for the demolition of the Property's private sewage disposal system. (UMF No. 14.) On October 1, 2024, the City issued Defendant a Notice of Violation which directed Defendant to obtain a valid demolition permit and remove the Property's private sewage disposal system. (UMF No. 15.)

On October 21, 2024, the City's Code Enforcement staff conducted a site inspection of the Property and observed that the private sewage disposal system remained on the Property and additional work had been performed, as portions of the system had been buried and protective bollards had been placed around it. (UMF No. 16.) On the same day, the City's Code Enforcement staff searched the City's permit records and did not identify any permit on file for demolition of the Property's private sewage disposal system. (UMF No. 17.) The City issued Defendant a Final Notice of Violation instructing Defendant to obtain a valid demolition permit and remove the Property's private sewage disposal system. (UMF No. 18.)

On November 19, 2024, the City's Code Enforcement staff conducted another site inspection of the Property and observed that the private sewage disposal system remained on the Property. (UMF No. 19.) On December 3, 2024, the City's Code Enforcement staff conducted an additional site inspection of the Property and observed that the private sewage disposal system was still on the Property. (UMF No. 20.) On December 13, 2024, the City issued Defendant a Pre-Citation Notice regarding the ongoing RPVMC violations on the Property. (UMF No. 21.)

On January 7, 2025, the City's Code Enforcement staff conducted a site inspection of the Property and observed that the private sewage disposal system remained on the Property. (UMF No. 22.) On the same day, the City's Code Enforcement staff searched the City's permit records and did not identify any permit on file for the demolition of the Property's private sewage disposal system. (UMF No. 23.) On January 7, 2025, the City issued Defendant a Notice of Citation and Administrative Citation No. 1179 based on Defendant's ongoing violations of the RPVMC at the Property. (UMF No. 24.)

On February 12, 2025, the City's Code Enforcement staff conducted another site inspection of the Property and observed that the private sewage disposal system remained on the Property. (UMF No. 25.) On the same day, the City issued Defendant a second Notice of Citation and Administrative Citation No. 1190 based on Defendant's continued violations of the RPVMC at the Property. (UMF No. 26.) Defendant has not sought or obtained permits for the demolition of the Property's private sewage disposal system or for a connection to the City's public sewer system. (UMF No. 27.)

LEGAL STANDARD

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. Section 437c(c).)

"[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Id. at 850.) In ruling on a motion for summary judgment or adjudication, the court considers all the evidence and all of the inferences reasonably drawn therefrom and must view such evidence in the light most favorable to the opposing party. (Id. at 843.)

DISCUSSION

Moving Party's Argument

Plaintiff argues that it is entitled to summary judgment because the evidence establishes that Defendant is maintaining the Property in a condition that constitutes a public nuisance per se because Defendant constructed an unpermitted private sewage disposal system on the Property and failed to obtain a permit for the demolition of the unpermitted sewage disposal system. Plaintiff argues that the evidence shows that Defendant constructed and maintained the private sewage disposal system without a permit in violation of RPVMC Sections 15.04.010, 15.18.010, and 15.18.040, and the violations constitute a public nuisance pursuant to RPVMC Section 1.08.010(D)(1). Plaintiff further argues that the evidence indicates that Defendant's construction of a private sewage disposal system on the Property violates RPVMC Section 15.12.010 because a public sewer connection is available within 200 feet of the Property, but Defendant continues to maintain the unpermitted private sewage disposal system. Next, Plaintiff argues that Rasor's entry onto the Property was lawful and the City's inspection of the Property was conducted pursuant to voluntary consent given by employees of the Property's lessee with authority over the area inspected. In the alternative, Plaintiff argues that Rasor reasonably relied on the apparent authority of the childcare facility employees. Finally, Plaintiff argues that Rasor's inspection was authorized by RPVMC Section 15.04.010.

Opposing Party's Argument

Defendant argues that Plaintiff has not met its initial burden because while Defendant acknowledges that it did not obtain permits for the construction of a septic system, Defendant did not install a septic system. Defendant argues that Plaintiff has not produced evidence of a septic system being installed, and challenges Plaintiff's evidence as hearsay. Defendant argues that the City's original entry onto Defendant's property was unlawful as reflected by Plaintiff's own evidence indicating that Rasor entered through an open gate, spoke to employees of the childcare facility, and then used an internal access road to reach the site where Plaintiff's photos were taken. Defendant argues that the childcare facility employees did not have authority to authorize Rasor's entry because they were not the owner or lessee of the church property inspected by Rasor.

Reply Argument

Plaintiff argues that Defendant has failed to create a triable issue of material fact regarding the condition Plaintiff seeks to abate and argues that Defendant has offered no testimony from a qualified witness identifying the photographed equipment as anything other than a septic tank. Plaintiff argues that Defendant has not identified the equipment, denied its existence, or opposed Plaintiff's evidence showing that Defendant owns and maintains the septic tank. Plaintiff argues that Defendant's argument that Rasor lacked authority to conduct his first inspection of the Property fails to establish a defense to the Property's unlawful condition. Plaintiff argues that Rasor's personal observations, experience, and photographs establish the existence of the unpermitted sewage disposal system. Plaintiff argues that Defendant's hearsay argument fails. Next, Plaintiff reiterates its argument that the evidence establishes that the City had actual or apparent authority to inspect the Property by consent from the onsite childcare facility employees. Finally, Plaintiff argues that Defendant has not identified any element of a Public Nuisance Per Se cause of action that has been negated, and argues that the narrow focus of Plaintiff's motion is the objective condition of the Property and the absence of any permits for that condition.

Request for Judicial Notice

Plaintiff requests that the court take judicial notice of the following matters: (1) RPVMC Section 1.08.010(D); (2) RPVMC Section 8.24.060(A); (3) RPVMC Section 15.04.010; (4) RPVMC Section 15.12.010; (5) RPVMC Section 15.18.010; (6) RPVMC Section 15.18.040; and (7) a copy of a Grant Deed recorded on September 1, 2022, concerning the Property.

Pursuant to Evidence Code Section 452(b), the court may take judicial notice of regulations and legislative enactments issued by any public entity in the United States. Thus, the court GRANTS Plaintiff's request for judicial notice as to Exhibits 1-6.

Pursuant to Evidence Code Section 452(h), the court may take judicial notice of "[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." Therefore, the court GRANTS Plaintiff's request for judicial notice as to Exhibit 7.

Accordingly, Plaintiff's request for judicial notice is GRANTED in its entirety.

Evidentiary Objections

Defendant's evidentiary objections Nos. 1-8 to the Silva Declaration are OVERRULED.

Defendant's evidentiary objections No. 9 to the Rasor Declaration is OVERRULED.

Plaintiff's evidentiary objections Nos. 1-2 to the Ramirez Declaration are SUSTAINED as hearsay. Plaintiff's evidentiary objection No. 3 to the Ramirez Declaration is SUSTAINED due to lack of foundation. Plaintiff's evidentiary objection No. 4 to the Ramirez Declaration is SUSTAINED due to lack of foundation, as to the statement that "was apparently reconnected to the sewer" only. Plaintiff's evidentiary objection No. 5 to the Ramirez Declaration is OVERRULED.

Plaintiff's evidentiary objections Nos. 6-9, 11 to the Marsh Declaration are SUSTAINED as hearsay. Plaintiff's evidentiary objections No. 10, 12 to the Marsh Declaration are SUSTAINED due to lack of foundation.

Merits of the Motion

A. Public Nuisance Per Se

A cause of action for public nuisance requires the following elements: (1) defendant, by acting, or failing to act, created a condition that was: (a) harmful to health; or (b) obstructed the free use of the property so as to interfere with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people at the same time; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) plaintiff did not consent to the conduct; (6) plaintiff suffered harm that was different from the type of harm suffered by the general public; and (7) defendant's conduct was a substantial factor in causing plaintiff's harm. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548; see *Department Fish and Game v. Superior Court* (2011) 197 Cal.App.4th 1323, 1352 [contrasting public and private nuisance]; *Kempton v. City of Los Angeles* (2008) 165 Cal.App.4th 1344, 1348 [public nuisance is one that affects a considerable number of people; blocking sidewalk is public nuisance per se]; CACI 2020.)

"The concept of a nuisance per se arises when a legislative body with appropriate jurisdiction, in the exercise of the police power, expressly declares a particular object or substance, activity, or circumstance, to be a nuisance." (*Beck Development Co. v. Southern Pacific Transportation Co.* (1996) 44 Cal.App.4th 1160, 1206.)

RPVMC Section 1.08.010(D)(1) provides that "any condition caused or permitted to exist in violation of any of the provisions of this Code shall be deemed a public nuisance and may be abated as such at law or equity." (RJN Exh. 1.)

Plaintiff first argues that the evidence shows that Defendant has maintained an unpermitted private sewage system in violation of CBC Section 105.1 as adopted by RPVMC Section 15.04.010 and RPVMC Section 15.18.040.

RPVMC Section 15.04.010 adopts the California Building Code ("CBC"), 2025 Edition. (RJN Exh. 3.) RPVMC Section 15.18.010 provides that division II of chapter 1 of the CBC, 2025 Edition is adopted as the Administrative Code of the City. (RJN Exh. 5.)

CBC Section 105.1 provides: "Any owner or owner's authorized agent who intends to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical or plumbing system, the installation of which is regulated by this code, or to cause any such work to be performed, shall first make application to the building official and obtain the required permit."

RPVMC Section 15.18.040 provides that "[n]otwithstanding the provisions of section 15.18.010 of this chapter," section 113.1 is amended to read: "No person shall erect, construct, enlarge, alter, repair, move, improve, remove, convert, demolish, equip, use, occupy or maintain any building, structure or building service equipment or perform any grading in the City or cause or permit the same to be done contrary to, or in violation of, any of the provisions of this code or any of the technical codes." (RJN Exh. 6.)

Plaintiff further argues that Defendant's private sewage system violates CPC Section 713.5 as adopted by RPVMC Section 15.12.010.

RPVMC Section 15.12.010 adopts the California Plumbing Code ("CPC"), 2025 edition. (RJN Exh. 4.) CPC Section 713.5 provides: "No permit shall be issued for the installation, alteration, or repair of a private sewage disposal system, or part thereof, on a lot for which a connection with a public sewer is available." CPC Section 713.4 provides that "[t]he public sewer shall be permitted to be considered as not being available where such public sewer or a building or an exterior drainage facility connected thereto is located more than 200 feet (60,960 mm) from a proposed building or exterior drainage facility on a lot or premises that abut and is served by such public sewer."

In support, Plaintiff first offers the declaration of David Rasor ("Rasor"), the City's Building Official. (Rasor Decl., ¶ 1.) Rasor declares that he is responsible for ensuring compliance with the building codes adopted by the City and the RPVMC. (Rasor Decl., ¶ 2.) Rasor declares that he reviewed a map prepared by the Los Angeles County Department of Public Works which depicted the location of public sewer lines in the vicinity of the Property (the "Sewer Map"). (Rasor Decl., ¶ 11.) Rasor declares that based on his review of the Sewer Map and his familiarity with the Property and surrounding area, Rasor

“determined that a public sewer connection is located within 200 feet of the building to be served on the Property.” (Rasor Decl., ¶ 12.)

Rasor declares that on September 23, 2024, “after reviewing the City’s permit records and determining that no permits had been issued for a private sewage disposal system on the Property, [Rasor] visited the Property to investigate a suspected violation of the RPVMC.” (Rasor Decl., ¶ 13.) Rasor declares that employees of a childcare facility located on the Property directed Rasor to a location where Rasor “observed a subsurface system, including a partially buried tank and associated plumbing components, constructed in an outdoor area enclosed by construction fencing.” (Rasor Decl., ¶¶ 14-19.) Rasor declares that based on his training and experience, the system Rasor observed “consisted of components used for the collection and on-site handling of wastewater and was consistent with a septic tank, a type of private sewage disposal system.” (Rasor Decl., ¶ 19.) Rasor subsequently declares that during his visit, he issued Defendant a Stop Work Notice ordering Defendant to “cease all work related to the construction of the unpermitted private sewage disposal system on the Property.” (Rasor Decl., ¶ 20.) Plaintiff has also provided several photographs taken by Rasor on September 23, 2024. (Rasor Decl., ¶ 19; Pltf. Appendix Exh. I.)

Additionally, Plaintiff submits the declaration of Octavio Silva (“Silva”), the City’s Deputy Director of Community Development. (Silva Decl., ¶ 1.) Silva declares that he is responsible for “oversee[ing] the City’s building and code enforcement functions and [is] familiar with the City’s practices, policies, and records relating to building permits, inspections, and code enforcement.” (Silva Decl., ¶ 2.) Silva declares that the City’s records reflect that properties adjacent to the subject Property are connected to a public sewer system. (Silva Decl., ¶ 5.)

Silva declares that based on a review of the City’s records, on October 1, 2024, “Code Enforcement staff conducted a search of City permits and determined that no permits had been issued for either the installation or demolition of the private sewage disposal system on the Property.” (Silva Decl., ¶ 11.) Silva declares that the City subsequently issued a Notice of Violation “directing that the private sewage disposal system be removed and that required permits be obtained.” (Silva Decl., ¶ 12.) Silva declares that on October 21, 2024, a City Code Enforcement Officer conducted a follow-up inspection of the Property and “observed that the private sewage disposal system remained on the Property and additional work had been performed, including burying portions of the system and placing protective bollards around it.” (Silva Decl., ¶ 13.) Silva declares that the Code Enforcement Officer took a photograph during the October 21, 2024 inspection, which is attached as Exhibit J to Plaintiff’s compendium of exhibits. (Silva Decl., ¶ 13; Pltf. Appendix Exh. J.) Silva declares that City Code Enforcement staff searched the City’s permit records following the October 21, 2024 inspection of the Property, but “did not find any permit on file for demolition of the private sewage disposal system.” (Silva Decl., ¶ 14.) Silva declares that on the same day, the City issued Defendant a Final Notice of Violation requiring Defendant to remove the private sewage disposal system and connect the Property to the public sewer system. (Silva Decl., ¶ 15.)

Next, Silva declares that on November 19, 2024, a City Code Enforcement Officer conducted another follow-up inspection of Property and observed that the private sewage disposal system was still on the Property, and the officer took a photograph of the system which is attached as Exhibit K to Plaintiff’s compendium of exhibits. (Silva Decl., ¶ 16.; Pltf. Appendix Exh. K.) Silva declares that on December 3, 2024, a City Code Enforcement Officer conducted an additional follow-up inspection of the Property and yet again observed that the private sewage disposal system remained on the Property. (Silva Decl., ¶ 17.) Silva declares that the officer took a photograph of the system, attached as Exhibit L to Plaintiff’s compendium of exhibits. (Silva Decl., ¶ 17; Pltf. Appendix Exh. L.) Silva declares that on December 13, 2024, the City issued Defendant a Pre-Citation Notice “regarding the continuing violations on the Property.” (Silva Decl., ¶ 18.)

Silva further declares that on January 7, 2025, a City Code Enforcement Officer inspected the Property and observed that the private sewage disposal system still existed on the Property and took a photograph to document the system, attached as Exhibit M to Plaintiff’s compendium of exhibits. (Silva Decl., ¶ 19; Pltf. Appendix Exh. M.) On the same day, City Code Enforcement staff searched the City’s permit records and were unable to locate a permit for demolition of Defendant’s private sewage system. (Silva Decl., ¶ 20.) Silva declares that at this time, the City issued Defendant a Notice of Citation and Administrative Citation No. 1179 “based on the continued violations on the Property.” (Silva Decl., ¶ 21.)

Silva declares that on February 12, 2025, a City Code Enforcement Officer conducted an additional inspection of the Property and noted that the private sewage disposal system remained on the Property. (Silva Decl., ¶ 22.) Silva declares that the officer took a photograph of the system, attached as Exhibit N to Plaintiff’s compendium of exhibits. (Silva Decl., ¶ 22;

Pltf. Appendix Exh. N.) Silva declares that on the same day, City Code Enforcement staff searched the City's permit records and were again unable to locate any permit on file for the demolition of Defendant's private sewage disposal system. (Silva Decl., ¶ 23.) Silva declares that the City issued a second citation, Administrative Citation No. 1190, on February 12, 2025 in response to Defendant's ongoing code violations. (Silva Decl., ¶ 24.)

Finally, Silva declares that based on Silva's review of the City's permit records, "no permit was issued at any time for either the demolition and removal of the private sewage disposal system or the connection of the Property to the public sewer system." (Silva Decl., ¶ 25.)

The court finds that Plaintiff's evidence is sufficient to enable Plaintiff to carry its initial burden of establishing that no triable issue of material fact exists as to whether Defendant has violated RPVMC Sections 15.04.010, 15.18.040, and 15.12.010 by maintaining a private sewage disposal system on the Property. Plaintiff's evidence indicates that a public sewer connection within 200 feet of the Property was available, based on Rasor's review of the Sewer Map. Plaintiff's evidence also shows that Defendant did not obtain a permit for the private sewage disposal system located on the Property. Pursuant to RPVMC Section 1.08.010(D)(1), a condition in violation of the RPVMC constitutes a public nuisance. (RJN Exh. 1.) Next, the burden shifts to Defendant to establish the existence of a triable issue of material fact.

In opposition, Defendant offers the declaration of George Ramirez, Jr. the Pastor of Community Christian Church of Rancho Palos Verdes. (Ramirez Decl., ¶ 2.) Ramirez declares that Defendant's sewer line stopped working on September 11, 2024." (Ramirez Decl., ¶ 12.) Ramirez further declares that he was "never contacted by any city official regarding this matter." (Ramirez Decl., ¶ 20.)

Defendant argues that Plaintiff has not established that Defendant installed a septic system.

However, the court refers to RPVMC Section 15.18.040, which states that "[n]o person shall...use, occupy, or maintain any building, structure or building service equipment...or cause or permit the same to be done contrary to, or in violation of, any of the provisions of this code or any of the technical codes." (RJN Exh. 6.) Taken together with RPVMC Section 15.04.010 which adopts CBC Section 105.1 which itself prohibits the installation of a plumbing system without a permit, the court finds that the maintenance of an unpermitted sewage disposal system constitutes a violation of the RPVMC. As noted by Plaintiff, Defendant has failed to present evidence negating any element of Plaintiff's Public Nuisance Per Se cause of action. Defendant has not presented evidence to establish that no public sewer connection was available within 200 feet of the Property or that Defendant possessed a permit for its private sewage disposal system. Further, Defendant has not presented any evidence showing that the system depicted by Plaintiff's photographs does not constitute a private sewage disposal system.

Therefore, the court finds that Defendant has failed to meet its burden of creating a triable issue of material fact as to Plaintiff's Public Nuisance Per Se cause of action.

The court recognizes the parties' arguments regarding the authority of Rasor to conduct the first inspection on September 23, 2024; however, that issue is immaterial to the elements of Plaintiff's Public Nuisance Per Se cause of action. Moreover, there is no evidence that any government official committed a trespass or otherwise violated Defendant's constitutional rights. Rasor identified himself to employees who were ostensibly in control of the site, told those employees of the nature of his visit, and was escorted to the site of the unpermitted work to make his observations. (Rasor Decl., ¶ 16.) Therefore, the court finds Defendant's argument regarding the lawfulness of Rasor's first inspection of the Property to be both irrelevant and unpersuasive.

Accordingly, Plaintiff's Motion for Summary Judgment is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion for Summary Judgment is GRANTED.

Moving party is ordered to give notice of ruling.